



Vision

"To be a global leader in promoting good corporate governance"

Motto

सत्यं वद। धर्मं चर। इष्टकारे कृते तृणानिः क्लेशंते ह्यु कृते ब्रह्म

Mission

"To develop high calibre professionals facilitating good corporate governance"

Thursday, March 27, 2025

Info Capsule

President

CS Dhananjay Shukla

Vice President

CS Pawan G Chandak

❖ Ministry of Corporate Affairs

Ministry of Corporate Affairs to Host Another Dynamic Candidate Open House for PM Internship Scheme (March 26, 2025)

Building on the success of its previous sessions, the Ministry of Corporate Affairs (MCA) is set to host another Candidate Open House for the PM Internship Scheme on 27th March 2025. As part of the ministry's ongoing commitment to supporting and engaging eligible candidates, this interactive forum will offer invaluable insights and real-time answers to applicants' most pressing questions. Held on a weekly basis, these Open Houses serve as a crucial touchpoint for aspirants navigating the application process.

For details:

<https://pib.gov.in/PressReleasePage.aspx?PRID=2115186>

❖ Banking

Parliament passes Banking Laws Bill, increasing option for nominees to four from one (March 26, 2025)

Parliament has passed the Banking Laws (Amendment) Bill 2024 with the Rajya Sabha approving on 26th March 2025. The Lok Sabha has already passed the bill. The bill seeks to amend the Reserve Bank of India Act 1934, the Banking Regulation Act 1949, the State Bank of India Act 1955, the Banking Companies (Acquisition and Transfer of Undertakings) Act 1970 and the Banking Companies (Acquisition and Transfer of Undertaking) Act 1980. The Bill seeks to increase the option for nominees per bank account to four, from the existing one. The bill also proposes to redefine substantial interest for directorships, which could increase to two crore rupees instead of the current limit of five lakh rupees. The Bill empowers banks to decide the remuneration of their auditors. Replying to a debate, Union Finance Minister Nirmala Sitharaman said the government has undertaken several reforms to strengthen the banking sector in the country. She said that in 2014, the banks were under stress, and when Narendra Modi came to power, it took steps and put in place a robust banking governance framework so that the financial condition of banks remains strong. She said that the public sector banks have recorded the highest ever net profit of 1.41 lakh crore rupees in the last year.

For details: <https://www.newsonair.gov.in/parliament-passes-banking-laws-bill-increasing-option-for-nominees-to-four-from-one/>

❖ International Financial Services Centre Authority

IFSCA Authority Meeting (March 26, 2025)

The 23rd meeting of the IFSCA Authority was held on March 26, 2025. The Authority, *inter alia*, approved the following:

- The IFSCA (Capital Market Intermediaries) Regulations, 2025: This will replace the extant IFSCA (Capital Market Intermediaries), 2021.
- IFSCA (KYC Registration Agency) Regulations, 2025: To register and regulate the KRAs in IFSC.
- Transition to IFSCA (Fund Management) Regulations, 2025: The authority approved the proposal towards one-time opportunity to extend the validity of the private placement memoranda whose validity has expired subject to certain conditions and a clarification towards the filing of the updated private placement memorandum consequent to the changes in the regulations.

For details:

<https://ifsc.gov.in/Viewer?Path=Document%2FLegal%2Fpress-release-of-ifsc-authority-meeting26032025084811.pdf&Title=IFSCA%20Authority%20Meeting&Date=26%2F03%2F2025>

❖ ESG Update

Nxtra by Airtel

Nxtra is an environmentally responsible brand and are advancing towards the adoption of renewable energy solutions, optimising resource use and championing energy-efficient practices to build a better future for all. Nxtra are also a member of the UN Global Compact, a prestigious voluntary initiative dedicated to advancing universal sustainability principles and supporting the UN Goals. Reflecting on commitment to sustainability, Nxtra made substantial strides last year towards reaching net-zero target by 2031.

- Nxtra Conducted an in-depth risk assessment to identify climate related physical risks that can potentially damage assets or disrupt Nxtra supply chain.
- Nxtra has launched ESG Learning initiatives (ELI), offering specialised training programmes and seminars focused on ESG principles.
- All Nxtra core data centers are ISO 50001:2018 certified.
- Established partnerships for the implementation of advanced sewage treatment plants, rainwater harvesting systems and real-time monitoring of water usage and quality.
- All Nxtra hyperscale data centers are Indian Green Building Council (IGBC) Gold certified.
- Used 220,541 MWh renewable energy in operations, 41% higher than last fiscal year 2023 and increased contracted renewable energy portfolio to more than 427,859 MWh, including six new projects.
- Reduced Scope 1 and 2 emissions by ~4% compared to base year FY21 despite an increase of 25% in power consumption.
- Nxtra 95% of waste disposed through government authorised vendors.

For details: <https://www.nxtra.in/documents/Nxtra-Sustainability-Report-2024.pdf>

❖ Competition Commission of India (CCI)

- **Commission approves the proposed combination involving, inter alia, Maple Infrastructure Trust (MIT); CDPQ Infrastructures Asia III Inc. (CDPQ Asia); Maple Highways Pte. Ltd.; 360 ONE Private Equity Fund and certain road assets of the Ashoka Buildcon group (March 25, 2025)**

The Proposed Combination involves the acquisition by MIT, acting through Maple Infra Invest Investment Manager Private Limited (Maple IM) of Ashoka Dhankuni Kharagpur Tollway Limited (ADKTL); Ashoka Sambalpur Baragarh Tollway Limited (ASBTL); Ashoka Belgaum Dharwad Tollway Limited (ABDTL); Ashoka Highways (Bhandara) Limited (AHBL); and Ashoka Highways (Durg) Limited (AHDL) (Proposed SPV Acquisitions) and certain inter-connected transactions. MIT is a private trust settled under the Indian Trusts Act, 1882, and was registered as an infrastructure investment trust under the Securities and Exchange Board of India (Infrastructure Investment Trusts) Regulations, 2014, on 24th February 2020. MIT is, through its special purpose vehicles, engaged in the business of owning and operating road assets in India. Maple IM is the investment manager of MIT.

For details: <https://www.cci.gov.in/media-gallery/press-release/details/504/0>

- **CCI orders probe against TASMAC for 'abuse of dominance' (26 March, 2025)**

The Competition Commission of India (CCI) has ordered a detailed investigation against Tamil Nadu State Marketing Corporation (TASMAC) for allegedly abusing its dominant position by limiting market access to certain brands of beer in Tamil Nadu. After establishing prima facie violation in its initial probe, the antitrust regulator has referred the matter to the director general (investigation) for further investigation. In its 12-page order, the CCI said that TASMAC, a state government wholly-owned company which has a monopoly in the distribution and sale of liquor in Tamil Nadu, gave preference to certain brands over others in its procurement of beer.

For details: https://www.financialexpress.com/business/industry-cci-orders-probe-against-tasmac-for-abuse-of-dominance-3789527/?ref=morelatest_hp

❖ **NITI Aayog****DX-EDGE aims to foster collaboration between public, private & academic sectors (March 26, 2025)**

NITI Aayog CEO BVR Subrahmanyam on 26th March, 2025 launched DX-EDGE-Empowering excellence and growth through digital transformation. DX-EDGE is a national initiative to create an ecosystem connecting Medium Small and Micro Enterprises-MSMEs, technology providers, and academic institutions. Speaking at the occasion, Mr Subrahmanyam said, DX-EDGE will drive digital transformation by developing a large pool of technical expertise, ensuring MSMEs gain structured, cost-effective access to technology, enhancing efficiency, revenue, and global competitiveness. The NITI Aayog CEO said, this model will help six crore existing MSMEs in the country with their problems and will bring solutions through technology and Artificial Intelligence.

For details: <https://www.newsonair.gov.in/dx-edge-aims-to-foster-collaboration-between-public-private-academic-sectors/>

❖ **MSME**• **MSMEs aren't one-size-fits-all: Secretary calls for tailored policies (26 March, 2025)**

The central government is pushing for policy reforms specific to the unique problems and demands of various segments of micro, small and medium enterprises (MSMEs) without viewing them as a homogeneous sector, Subhas Chandra Lal Das, secretary of the MSME ministry, said on 26th March, 2025, Wednesday. "MSMEs is a nomenclature. It is not a sector. We need a differentiated approach. While we have 60 million digitally registered MSMEs, only 800,000 of these are small, and just about 70,000 are medium. There are varying levels of capability and digital maturity, exposure to debt, and technology adoption. I request the industry to focus more on the SME segment," Das said at a Confederation of Indian Industry (CII) event in New Delhi.

For details: https://www.business-standard.com/economy/news/need-differentiated-approach-for-all-segments-of-msmes-secretary-125032601282_1.html

• **Parliamentary panel flags issues faced by MSMEs, exporters under GST; suggests easier compliance, fast tracking refunds (27th March, 2025)**

The parliamentary Public Accounts Committee (PAC) has flagged the issues being faced by Micro, Small and Medium Enterprises (MSMEs) and exporters under the indirect tax regime of Goods and Services Tax (GST), asking the Ministry of Finance to implement a simplified compliance framework for smaller businesses, to fast track and automate return filing, refund processing that includes reducing the frequency of return filings and a more straightforward online reporting process. In its report presented to Parliament on 26th March, 2025, Wednesday, the Committee also underlined the need for a dedicated fast-track refund processing system for exporters, ensuring that input tax credit (ITC) claims related to exports are prioritised and processed within a specified timeframe. The Committee also pointed out that the existing mechanisms for return filing are still inadequate, resulting in prolonged waiting periods for refunds and potential cash flow challenges for businesses. The Committee has recommended to the Ministry of Finance to implement a more efficient and transparent refund processing system with clear timelines for processing claims and regular updates to taxpayers on the status of their refunds.

For details: https://indianexpress.com/article/business/parliamentary-panel-flags-issues-faced-by-msmes-exporters-under-gst-suggests-easier-compliance-fast-tracking-refunds-9908032/?ref=business_hp

❖ **Pronouncement**

March 19, 2025	Lal Chand Jindal (Petitioner) Versus Regional Manager, Bank of Baroda (Respondent)	High Court of Judicature for Rajasthan, Bench at Jaipur S.B. Civil Writ Petition No. 1334/2015
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Sundays and other paid holidays should be taken into count for the purpose of treating Continuous Service of the Workman under Section 25B of the ID Act 1947

Brief Facts

Appellant's statement of claim has been rejected by the Central Industrial Tribunal, on a technical count that he has failed to prove the fact on the record that he worked for more than 240 days in the preceding calendar year as per Section 25-B of the Industrial Disputes Act, 1947(Continuous service). Thereafter, Appellant approached to the High Court and submitted that while counting the service period of the petitioner, the period of the holidays i.e., Sundays and other holidays were not taken into count.

Judgement

Hon'ble High Court observed that upon perusal of the record indicates that on the basis of the certificate, the total working period of the petitioner was calculated as 227 days in the last preceding year and on the basis of the same, the Tribunal recorded a finding that the petitioner has failed to prove that he has worked for more than 240 days in a calendar year. While passing the order impugned, the Tribunal has lost sight of the provision contained under Section 25-B (2) of the Act of 1947 and as per the judgment passed by the Hon'ble Apex Court in the case of *Workmen of American Express International Banking Corporation vs. Management of American Express International Banking Corporation* reported in AIR 1986 SC 458, the Sundays and other paid holidays should be taken into count for the purpose of treating continuous service of the workman. High Court held that in absence of the said finding recorded by the Tribunal the impugned award is not sustainable in the eye of law and is liable to be and is hereby quashed and set aside.

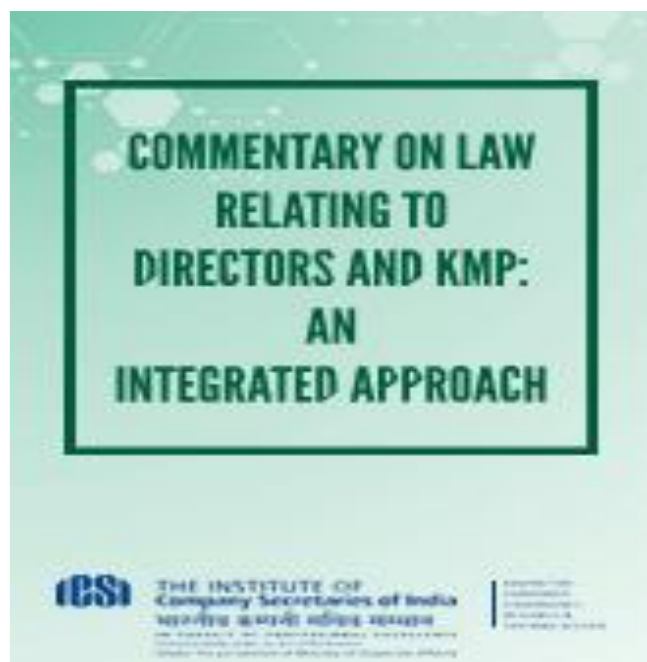
The matter is remitted back to the Tribunal by the High Court for its fresh adjudication after affording due opportunity of hearing to both the parties.

❖ **Market Watch**

Stock Market Indices as on 27.03.2025	
S & P BSE Sensex	77606.43(+0.41%)
Nifty 50	23591.95(+0.45%)

Foreign Exchange Rates as on 27.03.2025 (https://m.rbi.org.in/scripts/ReferenceRateArchive.aspx)			
INR / 1 USD	INR / 1 EUR	INR / 1 GBP	INR/ 1 JPY
85.76	92.44	110.85	.57

COMMENTARY ON LAW RELATING TO DIRECTORS AND KMP: AN INTEGRATED APPROACH



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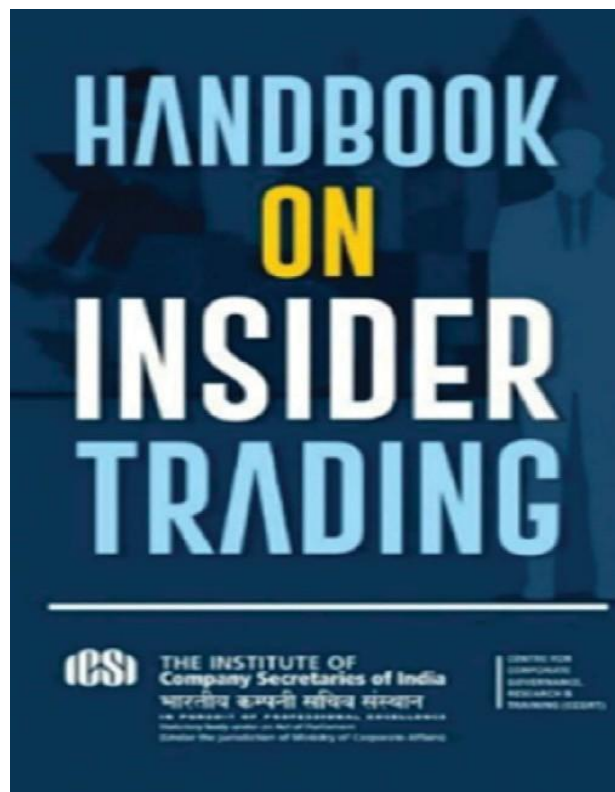
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HANDBOOK ON INSIDER TRADING



About the Book

This publication act as an ready reference to Professionals who are dealing on Insider Trading.

Year of Publication: 2023

Price: Rs. 400/- (Excluding Postage)

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